

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY  
OF THE CITY OF CHEYENNE  
Office of City Clerk**

October 22, 2012

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. Members of Boy Scout Troop 116 led the recitation of the pledge of allegiance.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Dr. Rinne, and pursuant to support received by Mr. Allen and Mr. Collins agenda item #21(b) was removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on October 8, 2012. Motion (per Consent Agenda) carried.

Mr. Brown and Mr. Valdez each declared a conflict of interest (business interest in vouchers payable to Ameri-Tech HVAC Services and Radio Station KYOY FM respectively) and vacated Council Chambers. Mr. Pierson moved to approve payment of vouchers as presented, seconded by Mr. Spiker. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown and Mr. Valdez returned to Council Chambers.

Mayor Kaysen opened a public hearing to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in a portion of the East Half of the East Half (E½E½) of Section 20, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (located approximately 150 feet west of the intersection of Converse Avenue and Ogden Road). Jim Flesher, Urban Planning Office, reviewed requirements and compliance of conditions contained in Wyo. Stat. §15-1-402, including specific information indicating compliance with Wyo. Stat. §15-1-402 (a)(i) through (vi). Ed Murray, Murray Properties, adjacent land owner and concerned citizen advised he had no problem with the annexation in principle or the requirements of state statute for compliance, however, he did have concerns with the proposed road configuration depicted in Exhibit D, Road Network for Section 20, submitted with the annexation documents. He stated the proposed configuration contemplates significant deviations from the master transportation plan and is not in compliance with the long range transportation plans as outlined in the Unified Development Code (UDC) under Section 4.3.2 (City Clerk's note: copies

of the UDC section were submitted by Mr. Murray and is on file with the City Clerk's Office). Mr. Murray expressed his concerns with the road configuration and questioned the timing of the submittal of the transportation network plan, commenting on his belief it should be submitted as part of the preliminary and/or final plat documents and not with the annexation paperwork. Kim Rindlisbacher, Scenic Development, Inc., provided brief comments on the project Scenic is planning on developing on the property, if annexed. He advised the project proposed is an upscale apartment community and stated the project will provide an amenity for the community, noting their development area will be conducive to the street plans outlined in PlanCheyenne. Comments followed with regard to having a master plan for development growth, including roads, of the area in place for review prior to approval of the annexation request. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the public hearing.

ORDINANCE - Creating Section 6.08.180 Feeding Geese and Ducks Prohibited, of Chapter 6.08, Animal Care and Control Regulations Generally, of Title 6, Animals, of the Code of the City of Cheyenne, Wyoming. Reporting for Public Services Committee, Ms. Ash moved to approve on third and final reading, seconded by Mr. Collins. Motion carried. Voting "yes"-- all members of the governing body with the exception of Mr. Pierson and Mr. Valdez voting "no". (#3962)

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne is in support of the Town of Albin's projects to be submitted to the State Loan and Investment Board for the December 2012 Countywide Consensus Block Grant funding in the total amount of \$115,000. Motion (per Consent Agenda) carried. (#5436)

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne is in support of the Town of Pine Bluffs project to be submitted to the State Loan and Investment Board for the December 2012 Countywide Consensus Block Grant funding in the amount of \$26,000. Motion (per Consent Agenda) carried. (#5437)

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2013 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113. Motion (per Consent Agenda) carried. (#5438)

[CA] RESOLUTION - Designating the Cheyenne Downtown Development Authority ("DDA") as the local Main Street Organization for the implementation of the Wyoming Main Street Program; authorizing the Mayor and City Clerk to join with the DDA in the submission of a Wyoming Main Street-Certified Track Application to the Wyoming Business Council; and designating the Executive Director of the DDA as the Program Director for the Wyoming Main Street Program in the City of Cheyenne. Motion (per Consent Agenda) carried. (#5439)

RESOLUTION - Authorizing the Mayor and City Clerk to enter into an agreement to purchase 537 square feet of land located at the southeast corner of the intersection of East 19th Street and Converse Avenue, Cheyenne, Laramie County, Wyoming -- referred to Finance Committee (sponsor -- Mr. Brown). Reporting for Finance Committee, Mr. Brown advised the item had been discussed under other items for the agenda at Finance Committee and provisions of Title 2 of City Code had been met. Mr. Brown moved to adopt, seconded by Mr. Collins. Upon inquiry, Dan White, City Attorney, advised the agreement is the result of discussions with the Cole family and would provide the City with acquisition of land to be affiliated with the City's roundabout project

(Converse/Pershing/19th intersection). He noted it is desired that the transaction proceed at this time as the Cole family will be closing on their property sale soon involving the Safeway Store site. Eric Miller questioned the size of the proposed roundabout, noting he had received an email per his previous request but would like a response "on the record." Mayor Kaysen read a portion of the email that was sent to Mr. Miller from Nathan Beauheim, Assistant City Engineer, that stated " ... the outside diameter of the proposed roundabout is about 230 feet, though this varies a little bit as the roundabout isn't a perfect circle...". Upon further inquiry, Mr. White stated the land is being purchased from the Cole Corporation, and Mayor Kaysen and Frank Cole noted that a property appraisal was done with the land valued at \$5,350.00 and that the agreed upon amount for purchase of the land is \$5,000.00. Motion carried. Voting "yes" -- all members of the governing body. (#5440)

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne has agreed on the Town of Burns substitution project to be submitted to the State Loan and Investment Board for the 2011-2012 Countywide Consensus Block Grant funding -- referred to Finance Committee (sponsor -- Mr. Collins).

[CA] RESOLUTION - Supporting the City of Cheyenne's application for a Land and Water Conservation Fund Grant for the Martin Luther King, Jr. Park Quickstart Tennis Court Project -- referred to Finance Committee (sponsors -- Mr. Allen, Ms. Ash, Mr. Valdez).

[CA] RESOLUTION - Authorizing the City of Cheyenne to approve and accept the FY2012 Grants to encourage arrest policies and enforcement of Protection Orders Program from the U.S. Department of Justice Office on Violence Against Women in the amount of \$300,000.00 (Award No. 2012-WE-AX-0058) -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Determining conditions for annexation required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in a portion of the East Half of the East Half (E½E½) of Section 20, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (located approximately 150 feet west of the intersection of Converse Avenue and Ogden Road) -- referred to Public Services Committee (sponsor -- Ms. Ash).

[CA] RESOLUTION - Authorizing the Governing Body of the City of Cheyenne to adopt the revised statement of investment policy -- referred to Finance Committee (sponsors -- Mr. Collins and Mr. Brown).

[CA] Contract between the City of Cheyenne, Transit Division, and Wyoming Department of Health, Aging Division, to provide supportive services to persons 60 years or older (Title III-B Program Grant). Motion (per Consent Agenda) carried. (#5919)

[CA] Contract between the City of Cheyenne, Parks and Recreation Department, and Cheyenne Capitals Youth Hockey Association, for 2012 - 2013 youth hockey season at the City owned Ice and Events Center. Motion (per Consent Agenda) carried. (#5920)

Ratification of existing Contract No. 5801 between the City of Cheyenne and Associated Legal Group, LLC, to provide funding for additional legal services as needed for the acquisition of property for the East Pershing Boulevard Reconstruction Phase IV Project, as provided in Section 6.E. of said contract. Mr. Brown reported there was no recommendation on the item from Finance

Committee. Mr. Brown moved to approve, seconded by Mr. Collins. Upon inquiry, Dan White, City Attorney, explained, pursuant to initiation of the City's eminent domain action, the existing contract provides for outside legal counsel who has extensive knowledge and experience in the area of eminent domain. He stated there is a clause in the agreement requiring governing body approval if the amount for services exceeded \$35,000.00. Mr. White advised they are continuing negotiations with the owners of the Hollywood Video property site and need to continue with the legal services being provided due to an upcoming hearing and conclusion of the matter, which will exceed the \$35,000.00 amount. Comments followed in support of continuing with the outside legal services, as well as comment in opposition to taking property generally. Motion carried. Voting "yes" -- Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Dr. Rinne and Mayor Kaysen. Voting "no" -- Mr. Allen, Mr. Pierson, Mr. Spiker and Mr. Valdez. (#5801)

[CA] Agreement between the City of Cheyenne and RBC Global Asset Management (U.S.) Inc. to provide investment advisory services (Solid Waste, 2007-2010, 2011-2014 1% Sales Tax & 1% Specific Purpose Tax) -- referred to Finance Committee.

[CA] Contract Modification No. 2 to Contract No. 5432 between the City of Cheyenne, Sanitation Division, and A-1 Organics for resources and services at the public Composting Facility. Motion (per Consent Agenda) carried. (#5432)

[CA] Contract Modification No. 1 to Contract No. 5511 between the City of Cheyenne, Public Works Department, and TriHydro Corporation for environmental monitoring at the Happy Jack Landfill. Motion (per Consent Agenda) carried (amount not to exceed \$209,220.00). (#5511)

[CA] Second Amendment to Contract #4966 between the City of Cheyenne and Saddle Ridge, LLC, pertaining to Saddle Ridge Subdivision greenway system improvements -- referred to Finance Committee.

[CA] Consideration of Bid #M-4-13 for a contract between the City of Cheyenne, Engineering Department, and Reiman Corporation, Cheyenne, Wyoming, for the East Pershing Boulevard Reconstruction Phase IV Project (1% Sales Tax 2007-2010, State and Local Grants, Water and Sewer Enterprise funds, Miscellaneous Federal Grants). Motion (per Consent Agenda) carried (amount not to exceed \$3,651,937.00). (#5921)

Consideration of Bid #M-6-13 for a contract between the City of Cheyenne, Parks and Recreation Department, and Simon Contractors, Inc., Cheyenne, Wyoming, for the Cheyenne Greenway Walterscheid Underpass Project (1% Specific Purpose Sales and Use Tax, Miscellaneous Federal Grants). Mr. Brown moved to accept the bid in an amount not to exceed \$785,662.50, seconded by Mr. Spiker. Comments followed regarding work previously provided by the contractor and level of confidence involving "a good product" being received for this project. Doug Vetter, City Engineer, explained the bid was the lowest, qualified responsive bidder and provided information on the Pershing/Snyder project involving the contractor, WYDOT and the City, noting the project is still unfinished as punch list items have to be corrected prior to finalizing the project. He advised WYDOT and the contractor have reached an agreement with regard to some corrections. Discussion included the following topics: Previous project concerns relative to quality of services provided by the contractor; compaction problems; quality of road construction and life of streets; aggregate and concrete products and problems (i.e. alkali silica reactivity a/k/a ASR); City specifications and

requirements, and on-site inspections during street projects. During discussion Mr. Vetter provided information on compaction problems that need to be watched during paving projects; Engineering Department's approach of providing provisions for mix designs to best suit project needs; nature of the underpass project that did not require special provisions being specified; regional problems with ASR involving aggregate, and concrete mix elements. Motion carried. Voting "yes" -- Mr. Brown, Ms. Broyles, Mr. Pierson, Mr. Spiker, Mr. Valdez and Mayor Kaysen. Voting "no" -- Mr. Allen, Ms. Ash, Mr. Collins and Dr. Rinne. Mayor Kaysen requested inspectors monitor the job closely due to concerns raised during discussion. (#5922)

Authorization to purchase Utility Rocket 5GHZ quadband communication equipment in the amount of \$167,999.72 from CDW- G for the Cheyenne Police Department (SLIB Funding) -- referred to Finance Committee. Mr. Brown advised the item was discussed under other items for the agenda at Finance Committee and provisions of Title 2 had been met. Mr. Brown moved to approve the purchase from CDW-G of Vernon Hills, IL in an amount not to exceed \$167,999.72, seconded by Mr. Valdez. Captain Mitch Maxwell, Cheyenne Police Department, advised they had recently received information that a similar product may exist and requested a 2 week postponement to allow for further evaluation. Upon inquiry, Captain Maxwell explained the communication equipment consists of a box that goes in the trunk of the vehicle and connects to and interfaces with the in-vehicle computer and camera system, which allows officers to run drivers licenses, etc. in the field. He explained it will increase the download speed for video transference, boost the cell signal, help eliminate communication dead zones, and has GPS tracking capability. Victor Sicone, Buffalo Ridge, questioned how many "spares" would be provided and how long the equipment would last before becoming obsolete and has to be replaced. Mr. Maxwell advised they have allocated funding to equip all patrol vehicles and spare vehicles and that the average life of the utility rockets is 5-7 years. Mr. Brown moved to postpone to Nov. 13, 2012, seconded by Mr. Pierson. Concern was expressed that Finance Committee members were requested to review the item under other items for the agenda due to timeliness issues involving installation of vehicle equipment, and staff's resulting request to postponement. Motion to postpone carried. Voting "yes" -- all members of the governing body.

Authorization to purchase a used Ice Surface Groomer, 2004 Olympian Model 2000, in the amount of \$55,000.00 from Big Hill Services Ltd., Cochrane, AB, Canada, for the City owned Ice and Events Center -- referred to Finance Committee. Mr. Brown advised the item was discussed under other items for the agenda at Finance Committee and provisions of Title 2 had been met. Mr. Brown moved to approve in an amount not to exceed \$55,000.00, seconded by Mr. Collins. Rick Parish, Parks and Recreation Director, provided information on recent equipment problems with the current 1996 ice groomer; problems in acquiring a temporary unit; need for a backup unit to fulfill contractual obligations to users of the Ice and Events Center for hockey activities; number of daily times the ice is groomed; other ice centers having 2 to 3 groomers, cost of a new groomer (\$100,000.00) and advised purchase of the 2004 model would include a 2 year warranty. He stated, if approved, the new unit could be received prior to the next governing body meeting, noting he may request a counter check be issued due to timing of the delivery, and indicated the current ice groomer will be kept operational as a backup with regular inspections. Motion carried. Voting "yes" -- all members of the governing body.

Announcement was made of a Public Hearing to be held November 13, 2012 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a transfer of ownership for a retail liquor license application filed with the City Clerk's Office for Los Abuelos Mexican

Restaurant, LLC d/b/a Los Abuelos Mexican Restaurant, 1601 Central Avenue, Cheyenne, Wyoming. (License currently held by One East Sixteenth LLC, 1601 Central Avenue, Cheyenne, Wyoming).

Announcement was made of the Appointments of Robert Mathia and Melissa Leger to the Downtown Development Authority Board to be confirmed November 13, 2012.

Announcement was made that due to the Veterans Day Holiday on Monday, November 12, 2012, the regularly scheduled meeting of the Governing Body will instead be held on Tuesday, November 13, 2012 beginning at 6:00 p.m. in City Council Chambers, Municipal Building, 2101 O'Neil Avenue, Cheyenne, Wyoming.

Under other business:

Barbie Harrington expressed concerns regarding the quality of work done by Simon Contractors and a recent street project (Pershing/Snyder Ave. area). She also questioned the source of funding for the office relocation of the Downtown Development Authority (DDA) and whether the money the DDA is using for costs involving the move might be unconstitutional pursuant to provisions of the Wyoming Constitution. Mayor Kaysen advised the funding for the DDA move is a loan through a joint powers board and not directly from the City. It was noted that the joint powers board involved was scheduled to meet the next day (Oct. 23<sup>rd</sup>) at 7:00 a.m. at the Align Building off of Airport Parkway.

Eric Miller commented on the quality of concrete pours for the Pershing/Snyder project, as previously referenced by Ms. Harrington, and suggested core tests be done with inspections for these types of projects.

Brad Harrington advised he had done research on the United Nation's Agenda 21 document and the City's Unified Development Code (UDC) and had information regarding this that he would like to present to the governing body, noting it would take him some time to review general Agenda 21 information as well as facts and details. Upon inquiry, he explained the purpose of providing the information is to demonstrate that codes of the City are connected with Agenda 21. Mayor Kaysen suggested Mr. Harrington distribute the information packets he had prepared to members of the governing body to give them an opportunity to review the research. Mayor Kaysen stated if Mr. Harrington so desired he would make himself available for further discussion on the topic. Mr. Harrington submitted copies of the information packets (titled "On Agenda 21: The United Nations' Blueprint for Collectivization and Enslavement, And on How It's Being Implemented on a Local Level Right Here in Cheyenne, Wyoming") to governing body members (document on file with City Clerk's Office). Comment was made that perhaps the topic could be reviewed at a public work session. Mayor Kaysen noted that the UDC is undergoing its first annual review for presentation to the governing body for any changes and, as part of the review process, there will be the opportunity for public involvement.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:17 p.m.

Submitted by,

Carol Intlekofer, MMC  
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle  
October 30, 2012